

Rules and Guidelines Examination Board (2016-2017)

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Attachment: Explanation of a number of articles

1. Scope of application

Rules and Guidelines referred to in Article 7.12b, third paragraph, Higher Education and Research Act, and adopted by the Examination Boards.

These Rules and Guidelines apply to the examinations and final assessments in all of the degree programmes in the Faculty of Sciences.

These regulations apply to anyone following the degree programme in this academic year, irrespective of when he or she started the degree programme.

2. General

1. The terms defined in the OER that apply to the relevant study programme also apply to these Rules and Guidelines. The other terms have the meanings ascribed to them by the WHW.
2. In the event that any provision in these regulations conflicts with a provision in the OER that applies to the relevant study programme, the provisions of the OER shall take precedence.

3. Composition of the Examination Board

1. The Examination Board consists of 12 members who are experts in the field of degree programme(s), examination development or quality assurance. At least one member works as a teacher within the programme or one of the programmes to which these

Rules and Guidelines apply. At least one member of the Board is not affiliated with the degree programme(s). Members of the Executive Board or persons who have other financial responsibilities within the institution cannot be a part of the Examination Board.

2. The members of the Examination Board are appointed by the Faculty Board.
3. The Examination Board shall appoint one of its members to act as chairperson (external members are not eligible for this position). The chairperson is responsible for the general procedure of the Examination Board. He/she shall appoint an alternate to replace him/her in the case of absence.
4. Before a member is appointed, the FB questions the Examination Board regarding the proposed appointment.
5. A member of an Examination Board is appointed for a period of three years and may be reappointed.
6. The FB is responsible for guaranteeing that the Examination Board operates in a manner that is independent and expert.

4. Duties of the Examination Board

The duties of the Examination Board are regulated by law. This will include among other things drawing up rules for the performance of duties and responsibilities and taking measures with regard to:

- determining in an objective and expert manner whether or not a student meets the conditions set in the Academic and Examination Regulations relating to the knowledge, insight and skills necessary to obtain a degree;
- maintaining and assuring the quality of all examinations in the study programme;
- sets the guidelines and instructions for the results of examinations and final degree assessments to be determined within the framework of the Academic and Examination Regulations (OER);
- granting exemptions for one or more examinations;
- ensuring that measures are taken in cases of fraud and academic misconduct;
- appointing examiners to conduct examinations and determine the results;
- the Examinations Board grants a degree certificate including a diploma supplement as proof that the student has successfully completed his/her final examination;
- granting permission to students to take a free-choice study programme with an examination that leads to obtaining a degree;
- issuing a statement of results attained to persons who have successfully completed more than one examination but are not eligible for a degree certificate;
- preparing an annual report of activities.

5. Working method of the Examination Board

1. In principle, the Examination Board meets once a month or as often as its chairperson deems necessary. The meetings are not held in public.
2. The Faculty Board can add an administrative secretary to the Examination Board.
3. In the event of a request or complaint involving a member of the Examination Board, this shall be dealt with in the absence of the member concerned.
4. The request or complaint must always include a justification of the request or a description of the complaint.
5. The Examination Board will make a decision within six weeks of receiving a request.
6. Faculty Examination Board decisions are taken by majority vote. The Board's decisions must be taken by at least half of the members.

7. The Faculty Examination Board has seven sub-boards for Bachelor's and Master's programmes in the following fields:

- Mathematics;
- Chemistry;
- Pharmaceutical Sciences;
- Computer Science;
- Physics and Astronomy;
- Medical Natural Sciences;
- Science, Business & Innovation.

The sub-boards have corresponding designations. Each sub-board has no more than three members. The first five sub-boards mentioned above are disjunct.

8. In the interests of procedural matters, sub-boards can be supplemented by the addition of non-voting members.
9. From among their members, the sub-boards elect an executive board, consisting of a chairperson and a secretary.
10. Day-to-day matters in the faculty Examination Board are dealt with by the sub-boards.
11. Sub-board decisions are taken by majority vote.

6. Registration for exams

1. Registration for written examinations is subject to rules and regulations. The Examination Board can set specific additional rules with regard to the organization and procedures associated with administering examinations and final degree assessments.
2. Registration for oral examinations should be done by completing the required form in consultation with the examiner.
3. Signing up after the deadline is not possible. A student who is not able to register before the deadline due to special, personal circumstances may submit an appeal on the basis of the hardship clause.

7. Questions and assignments, subject matter and duration of examinations

1. None of the individual questions and assignments in the examination will relate to anything other than the previously announced examination material. The main points of this examination material will be published prior to the start of the programme component that prepares students to sit the examination in question. No later than one month before the date of the examination in question, students will be notified of the exact scope of the examination material.
2. The length of each examination is such that the student can reasonably be expected to answer the questions in the time given.
3. In the event of a resit in another academic year, the student will sit an examination based on the material set for that examination in the academic year in question, unless the Examination Board decides otherwise (at the request of the examiner).
4. The Examination Board monitors the quality of examinations and final degree assessments.

8. Quality assurance

The Examination Board is responsible for maintaining and ensuring the quality of all tests and examinations by means of the Assessment Policy Framework.

9. Procedure for written examinations

1. In order to participate in an examination, students must show a valid proof of registration (university registration card) and a valid ID with a signature and a photo that is a good likeness of the individual in question.
2. The Examination Board shall ensure that enough invigilators are appointed for the written examination and that these individuals will ensure that the examination is conducted properly.
- 2a. The examiner may, when using a common examination room, ask the central organization unit to ensure that there are enough invigilators present.
3. Students are obliged to follow the instructions of the invigilator(s).

10. Procedure for oral examinations

In order to participate in an examination, students must show valid proof of registration and a valid ID.

11. Procedure for practicals

1. The manager of the practical or the manager of the research group will, where necessary, ensure that assistants are designated for the practicals in order to supervise the smooth running of the practical or research activity.
2. At the request of the Examination Board, or on its behalf, students are obliged to identify themselves by presenting a valid proof of registration.
3. Students are obliged to follow without delay the instructions given by the practical manager, before or during the practical.
4. Any student who fails to abide by the provisions included or intended in paragraphs 2 and 3 may be excluded from further participation in the relevant practical by or on behalf of the Examination Board. As a consequence of this exclusion, no result will be issued. Before the Examination Board reaches a decision, it will invite the student to present his or her case.

12. Exemptions (in addition to the Academic and Examination Regulations)

1. A request for exemption from an examination must be submitted to the Examination Board before the start of the relevant degree component.
2. After consulting the relevant examiner, the Examination Board can grant exemption from an interim examination or practical based on the following:
 - a) a successfully completed interim examination or practical in higher education in the Netherlands or elsewhere, which corresponds in terms of content, level and study load with the component from which exemption is sought; or
 - b) knowledge and/or skills that are comparable in content, level and scope, acquired outside of higher education.
3. Prior approval is required from the Examination Board if a student wishes to meet the requirements for specific interim examinations by studying at a different faculty or (Dutch or foreign) university.
4. Students can request that the examination board grant them exemption from participation in practical components. The grounds for granting such exemptions include conscientious objections. The examination board determines which supplementary requirements students must meet.
5. An exemption that has been granted based on study results obtained at a foreign university is registered as a 'pass' or 'fail'.

13. Exam

If students pass every component of the selected subjects chosen by them and approved by the Examination Board, they are considered to have passed their final degree assessment.

14. Iudicia

1. If a student has given proof of outstanding or particular competence the designation 'cum laude' may be awarded.
 2. Cum laude Bachelor's programme
the classification 'cum laude' is given to students who have met the following conditions:
 - a. received a 6.0 or a 6.5 for no more than two components;
 - b. for the other components, with the exception of the graduation project, results of 7.0 or higher have been obtained;
 - c. the mark for the graduation project is at least an 8.0;
 - d. the weighted average of all examination components excluding the graduation project of the Bachelor's programme is at least an 8.0. Extracurricular marks do not count;
 - e. Exemptions make up no more than 20% of the nominal credits to be obtained.
 3. Cum laude Master's programme
the classification 'cum laude' is given to students who have met the following conditions:
 - a. for all components, results of 7.0 or higher have been obtained;
 - b. for the other components, with the exception of the graduation project, results of 7.0 or higher have been obtained;
 - c. the mark for the graduation project is at least an 8.0;
 - d. the weighted average of all examination components excluding the graduation project of the Master's programme is at least an 8.0. Extracurricular marks do not count;
 - e. Exemptions make up no more than 50% of the nominal credits to be obtained.
- 15. Academic misconduct in final degree assessments and examinations**
1. Cheating and plagiarism are defined as any act or omission by a student that partially or entirely precludes making an accurate assessment of their knowledge, understanding and skills, or those of another student.
 2. Fraud and academic misconduct include:
 - a. being in possession of aids or resources (pre-programmed calculator, mobile phone, books, syllabi, notes, etc.) which are not expressly permitted during the examination;
 - b. copying from or exchanging information with another student during the examination;
 - c. assuming someone else's identity during the examination;
 - d. allowing someone else to assume your identity during the examination;
 - e. obtaining details of examination questions before the date or time at which that examination is scheduled to take place;
 - f. changing, extending or amending a section of the examination after it has been submitted for final assessment.
 3. Plagiarism includes the following:

- a. using or copying other people's texts, data or ideas without a complete and correct acknowledgment of sources;
- b. not showing clearly in the text, for example through the use of quotation marks or a particular layout, that text is being cited directly from another author, even where correct referencing has been included;
- c. paraphrasing the contents of other people's texts without sufficient referencing of sources;
- d. submitting texts that have previously been submitted for earlier assignments, or comparable texts, for separate examination components;
- e. copying work from other students and presenting this work as one's own;
- f. submitting papers that have been obtained from a commercial agency or that have been written by someone else (whether or not this was in exchange for payment).

16. Procedures and sanctions

1. If the examiner ascertains, or has good reason to suppose, that academic misconduct has taken place, he or she must report this to the Examination Board in writing immediately. The Examination Board will inform the student of this report in writing.
2. The Examination Board will invite the student to present his or her case and will decide whether academic misconduct or plagiarism has been committed on the basis of the evidence and, where possible, the information provided by the student at the hearing. Further information may be required from the examiner.
3. If the Examination Board is convinced that academic misconduct has been committed, a sanction will be imposed.
4. With due regard to the principles of legal fairness and proportionality, the Examination Board can declare the examination or the assignment to which the academic misconduct relates to be invalid and may also exclude the student from the following relevant examination.
5. In the event of serious or repeated academic misconduct, the Examination Board may exclude the student from participating in one or more examinations or final degree assessments at VU Amsterdam for a maximum of one year.
6. If very serious academic misconduct is identified, the Examination Board can advise the Executive Board (through the Faculty Board) that the student's registration should be terminated permanently.
7. The Examination Board grants no exemption regarding the sitting of interim examinations which, during the period in which the student is debarred from sitting interim examinations, are held in another faculty.
8. The student can appeal directly to the Examination Appeals Board against the decision made by the Examination Board within six weeks of the announcement of the result.
9. In urgent cases relating to academic misconduct which are not covered by these Rules and Guidelines, the Examination Board will make a decision with due regard to the principles of an appropriate procedure.

16a Irregularities

If the Examination Board concludes that one or more degree component examinations, or an entire examination, were not completed in the prescribed manner or that an examination component or examination was not held in the proper manner, it can declare the examination, or the relevant part thereof, invalid.

17. Retention periods

Bachelor's and Master's theses and final papers are retained for a period of at least 7 years.

Exam question papers and answers including answers, assignments and other written materials for which a full or partial mark has been given and examination results are retained for a period of at least two years.

18. Annual report

By 1 December, the Examination Board will compile a report on its activities during the previous academic year. The Examination Board will send the Annual Report to the Faculty Board. On request, the Annual Report or parts of it can be made available to interested parties.

19. Amendments to these Rules and Guidelines

No amendments are made in relation to the current academic year, unless there is a reasonable expectation that this will not infringe the interests of the students.

20. Unforeseen circumstances / hardship clause

In any circumstances not covered by these Rules and Guidelines, or in circumstances where the provisions in this regulation are unreasonable or unfair to the student, the decisions of the Examination Board will be final.

21. Date of commencement

These Rules and Guidelines take effect as of 1 September 2016.

Adopted by the Examination Board on 7 July 2016.